



CHAPTER 69.

An Act to make further provision with respect to the borrowing powers of councils of counties and of municipal boroughs, and of other public authorities and bodies. A.D. 1916.
[22nd December 1916.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The council of any county or of any municipal borough or of any urban district may, during the continuance of the present war and a period of six months thereafter, borrow, with the consent of the appropriate Government Department, on the security of all or any of the funds, property, or revenues of the council for the purpose of discharging any outstanding loan of the council, or for the purpose of replacing any sinking fund money or other sums which have been used for purposes for which they had power to borrow, or for the purpose of raising any further sums which the appropriate Government Department authorise them to raise with a view to prospective capital expenditure.

Further power
of county or
borough coun-
cils, &c. to
borrow.

The application and use of any sums borrowed under this provision shall be subject to such conditions as may be imposed by the appropriate Government Department whose consent is given to the borrowing.

(2) During the continuance of the present war, and a period of six months thereafter, the council of any county or municipal borough or of any urban district may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, borrow any sums which they have power to borrow for the time being by means of the issue of bearer bonds or other securities to bearer, whether within or without the United Kingdom, and, if thought fit, in any foreign currency.

Any such bonds or securities shall rank, as respects other securities issued by the council, in the same manner as if the

A.D. 1916. sum borrowed by means of those bonds or other securities had been borrowed by means of the issue of stock.

(3) The council of any county or of any municipal borough or of any urban district may re-borrow under the powers given by this Act for the purpose of paying off any money borrowed under those powers; and the limitation on the exercise of those powers to the continuance of the present war and a period of six months thereafter shall not apply to any such re-borrowing.

(4) Any power given by this section shall not derogate from any other power of borrowing, and may be exercised notwithstanding anything in any Act.

Extent, interpretation, and short title.

2.—(1) This Act may be applied to any local authority (other than the council of a county or of a municipal borough or of any urban district), and to any other public body on the application of that authority or body, by the appropriate Government Department; and if so applied, shall be construed, with any necessary modification, as if the authority or body to whom it is applied were substituted for the council of the county or of the municipal borough or urban district.

(2) In this Act, unless the context otherwise requires,—

The expression “appropriate Government Department” means, in the case of the London County Council the Treasury, in the case of other authorities or bodies in England and Wales the Local Government Board, in the case of authorities or bodies in Scotland the Secretary for Scotland, and in the case of authorities or bodies in Ireland the Local Government Board for Ireland;

The expression “sinking fund money” means money for the time being standing to the credit of any sinking fund, redemption fund, depreciation fund, or fund of a like nature; and

The expression “municipal borough” means, in the application of this Act to Scotland, a royal, parliamentary, or police burgh.

(3) This Act may be cited as the Public Authorities and Bodies (Loans) Act, 1916.

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FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.